

CAPITAL ONE, NA v YATES

23CV46838

DEFENDANT'S MOTION TO ACKNOWLEDGE TITLE 48 CFR AFFIDAVIT PRESENTED AS LETTER OF ROGATORY

On July 24, 2023, Capital One, N.A. ("Plaintiff") filed a Complaint for common counts or account stated against Deanna K. Yates ("Defendant.") Defendant filed a response on December 4, 2023.

Defendant now moves "to Acknowledge Title 48 CFR International Commercial Affidavit Presented as Letter of Rogatory." Plaintiff opposes the motion. For the reasons set forth below, the Motion is denied.

The motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Effective 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

While the Court has authority to deny the motion on this ground alone, in the interests of justice it has considered the substantive merits of the Defendant's motion and denies the motion on that basis.

Legal Analysis

Defendant appears to be arguing that Plaintiff's complaint is invalid on the grounds of what is known as the Sovereign Citizen Movement. The Sovereign Citizen movement is a "loose grouping of litigants, commentators, and tax protestors who often take the position that they are not subject to state or federal statutes and proceedings." (*United States v. Weast* (5th Cir. 2016), 811 F.3d 743, 746 fn. 5.) In essence, subscribers to this movement will show up in court "asserting various theories to the effect the court has no jurisdiction over them." (*Ibid.*)

Courts across all jurisdictions have consistently designated these types of arguments as frivolous. (See e.g., *United States v. Studley* (9th Cir. 1986), 783 F.2d 934, 937, fn. 4 [the sovereign citizen argument has been "consistently and thoroughly rejected by every branch of the government for decades. Indeed advancement of such utterly meritless arguments is now the basis for serious sanctions imposed on civil litigants who raise them"]; (*U.S. v. Benabe*, (7th Cir. 2011, 54 F.3d 753, 767 [such theories that a "sovereign citizen" is beyond the jurisdiction of the courts "should be rejected summarily, however they are presented"]; *Ceja v. Birkholz*, CV 22-1636-FWS(E) (C.D. Cal. May 3, 2022) [citing numerous cases finding sovereign citizen claims to be frivolous and without merit].)

California courts may exercise jurisdiction "on any basis not inconsistent with the Constitution of this state or of the United States." (Code of Civil Procedure §410.10.) This Court has personal jurisdiction because Defendant was properly served with the Summons and Complaint at her residence of 4628 S. Burson Rd., Valley Springs, CA 95252. As regards subject matter jurisdiction this "relates to the inherent authority of the court involved to deal with the case or matter before it." (*Varian Medical Systems, Inc. v. Delfino* (2005), 35 Cal.4th 180, 186.) The Defendant has failed to make any valid argument that the Court lacks subject matter jurisdiction.

Based on the foregoing, Defendant's motion is **DENIED**.

The Clerk shall provide notice of the Ruling forthwith. No further formal Order is required.

GUARANTY HOLDINGS OF CALIFORNIA, INC. v CATTANEO

20CV44713

DEFENDANTS' DEMURRER AND MOTION TO STRIKE PORTIONS OF FIRST AMENDED COMPLAINT

This case involves a landlord-tenant dispute over the condition of the residence after being surrendered back to the homeowner. At the core of the dispute is Defendants' removal of floating boat dock and other items on the property owned by Plaintiff Guaranty Holdings of California, Inc ("GHOC"). The First Amended Complaint (FAC) was filed on May 27, 2023. As against all Defendants, including Bernadette Cattaneo ("Cattaneo") and David Robinson ("Robinson") (collectively "Moving Defendants") the FAC alleges causes of action for conversion and receipt of stolen property. As against Defendant Christopher Dufresne ("Dufresne") and the Estate of Sylvia Brown ("Estate") the FAC also alleges a cause of action for fraud. As against Cattaneo, the FAC also alleges a cause of action for private nuisance. Now before the Court are the Moving Defendants' Demurrer and Motion to Strike Portions of the First Amended Complaint.

The Court denies the Request for Judicial Notice as to: (A) the obituary as irrelevant, and grants as to (B) and (C) as these are government agency documents, though the Court did not find them relevant to its analysis and decision.

I. Factual Background

In or about December 2018, GHOC purchased the residence known as 108 Sanguinetti Court, Copperopolis, California (the "Residence") at a Trustee's Sale. At the time GHOC purchased the Residence, Dufresne occupied the Residence and owed approximately \$400,000.

Following GHOC's purchase of the Residence, counsel for GHOC and counsel for Dufresne and the Estate, entered into negotiations regarding when Dufresne would vacate the Residence. In January 2019, GHOC's former attorney received a letter dated January 9, 2019, signed by Dufresne (hereinafter "the Letter") that read, in pertinent part:

This letter is meant to serve as my written assurance to you that I Christopher Michael Dufresne have no intentions of stripping or removing the dock, lift, fixtures or anything else from property address: 108 Sanguinetti Ct. Copperopolis, CA 95228."